

26VECV01958 26VECV01958

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-23

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CO%2C07%2F23%2F2026

Source SHA-256: d227029c2a1f9b3238dcb44b2d9976c183c5707f483792960b85cba3b66a9e17

Case Number: 26VECV01958 Hearing Date: July 23, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ISRAEL ALCANTARA , an individual, SUSANA PAROCUA, an individual, DANNY SEBASTIAN ALCANTARA, an individual, LOPEZ EMMANUEL ALEXANDER, an individual, ROCHA DIAZ JORGE ARMANDO, an individual, ANTONIO ZOQUITECATL ORTIZ, an individual,

Plaintiff,

vs.

CNC PROPERTIES, LLC, a California limited liability company, ATLANTIC STAR, LLC, a California limited liability company, KYUNG MI CHOI, an individual, and DOES 1-10, inclusive,

Defendants.

)

)

)

)

)

CASE NO.: 26VECV01958

ORDER

DENYING PLAINTIFFS' MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES, SET ONE, REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, AND REQUESTS FOR ADMISSIONS, SET ONE, FROM DEFENDANTS ATLANTIC STAR, LLC, AND KYUNG MI CHOI

I.

BACKGROUND

Plaintiffs Israel

Alcantara, Susana Parocua, Danny Sebastian Alcantara, Lopez Emmanuel Alexander, Rocha Diaz Jorge Armando, and Antonio Zoquitecatl Ortiz (jointly, "Plaintiffs") allege Defendants CNC Properties, LLC ("CNC"), Atlantic Star, LLC ("Atlantic Star"), and Kyung Mi Choi ("Choi") (jointly, "Defendants") created and maintained a hazardous and unsafe working environment at 15826 Ventura. Bl., Suite 110, Encino, CA 91436 (the "Property"). Plaintiffs own or are employed at a restaurant that operates from a unit at the Property. As a result of these violations, Plaintiffs allege they suffered serious health problems arising from issues, including but not limited to, massive water leakage, water damage, flooding, and mold exposure.

Plaintiffs move to

compel Atlantic Star's and Choi's responses to their Special Interrogatories, Set One, Requests for Production of Documents, Set One, and Requests for Admissions, Set One.

II.

PROCEDURAL

HISTORY

On June 17,

2026, Plaintiff filed a Complaint alleging (1) Breach of Contract; (2) Negligence; (3) Violation of California Civil Code section 1927 (Contractual and Tortious Breach of Covenant of Quiet Enjoyment); (4) Violation of California Civil Code section 1929; (5) Violation of California Health and Safety Code section 17920.3; (6) Negligent Misrepresentation; (7) Negligence Per Se (Violation of Building Codes and Health and Safety Codes); (8) Negligent

Infliction of Emotional Distress; (9) Breach of the Implied Covenant of Good Faith and Fair Dealing; (10) Violation of Business and Professions Code sections 17200, et seq. (11) Premises Liability; and (12) Injunctive Relief.

On June 11,
2026, Plaintiffs filed the instant Motion.

On June 17,
2026, Plaintiffs filed a First Amended Complaint ("FAC") alleging (1) Breach of Contract; (2) Negligence; (3) Violation of California Civil Code section 1927 (Contractual and Tortious Breach of Covenant of Quiet Enjoyment); (4) Intentional Misrepresentation (Fraud); (5) Negligent Misrepresentation; (6) Negligence Per Se (Violation of Building Codes and Health and Safety Codes); (7) Negligent Infliction of Emotional Distress; (8) Breach of the Implied Covenant of Good Faith and Fair Dealing; (9) Nuisance; (10) Fraudulent Concealment; (11) Violation of Business and Professions Code sections 17200, et seq.: (12) Premises Liability; and (13) Injunctive Relief.

On July 10,
2026, Atlantic Star and Choi filed an Opposition.

As of July 21,
2026, no reply has been filed.

III.

LEGAL STANDARD

A.

Requests
for Production

A party upon
whom a demand for the production of documents has been made has 30 days after service of the demand to respond. (See Code Civ. Proc. § 2031.260(a).)[1] The propounding and responding parties may agree to extend the time for response. (See Code Civ. Proc. § 2031.270(a).) When a party fails to serve a timely response, the propounding party's remedy is to seek a motion to compel response. (See Code Civ. Proc. § 2031.300(b).) A responding party that does not provide responses waives the right to object to the demand, including objections based on privilege or work product. (See Code Civ. Proc. §

2031.300(a).)¿

B.

Interrogatories

If a party to

whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (See Code Civ. Proc. § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (See *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)

C.

Requests for Admission

“Any party

may obtain discovery . . . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties.” (Code Civ. Proc. § 2033.010.) “Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared...” (Code Civ. Proc. § 2033.250(a).)

If a party to

whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (See Code Civ. Proc. § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (See Code Civ. Proc. § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (See Code Civ. Proc. § 2033.280(c).)

IV.

ANALYSIS

The Court

will deny the Motion. Plaintiffs improperly combine six separate requests for relief—RFPs, SROGs, and RFAs as to two separate Defendants—into one Motion to Compel. While there is no section formally requiring separate motions under the Code of Civil Procedure, discovery motions require separate filing fees; one motion is appropriate for one party and one set of discovery. (See Govt. Code § 70617(a)(4) (setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing). Combining discovery motions allows the moving party to avoid paying the requisite filing fees. Filing fees are jurisdictional and it is mandatory for court clerks to demand and receive them. (See *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.)

Thus, the

Court DENIES Plaintiffs' Motion to Compel including its request for discovery sanctions.

V.

CONCLUSION

Based on the

foregoing, the Court DENIES Plaintiffs' Motion to Compel.

IT

IS SO ORDERED.

DATED: July 23, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references

are to California codes unless stated otherwise.